

BEFORE
THE FEDERAL MARITIME COMMISSION

DOCKET NO. 24-19

PELOTON INTERACTIVE, INC.
Complainant

vs.

FLEXPORT INTERNATIONAL LLC
Respondent

**COMPLAINANT’S MOTION FOR EXTENSION
OF THE SCHEDULING ORDER**

Complainant Peloton Interactive, Inc. (“Peloton”) respectfully requests an extension of the deadlines in the November 8, 2024 Scheduling Order (“Scheduling Order”).

Today, December 20, 2024, Peloton will complete its production of documents, which will consist of 20,838 documents and approximately 60,000 pages. Flexport International LLC (“Flexport”) also completed production of documents, which amount to approximately 100,000 pages. Peloton respectfully submits that good cause exists to extend all deadlines in the Scheduling Order.

Under the Scheduling Order, a “motion which sets forth good cause to extend the schedule—such as voluminous (defined) or technically challenging document production, or a substantial number of depositions—will be considered if the parties are unable to meet the deadlines above.” Peloton contends that the voluminous production and the anticipated number of depositions in this proceeding warrant extension of the deadlines.

Fact Depositions are scheduled to conclude on January 17, 2025, and Peloton anticipates a number of depositions, including but not limited to the four (4) notices of depositions and a 143(b)(6) witness already issued by Flexport on December 19, 2024, and anticipated third-party subpoenas. Currently, the January 17, 2025 deadline is not sufficient to provide reasonable notice, i.e., thirty (30) days', to witnesses, nor is it sufficient to review a voluminous production of this scale. Moreover, on December 19, 2024, both parties issued their disclosure of their Intention to use Expert Witness, which have identified four (4) expert witnesses. Peloton anticipates that additional time will be needed for expert reports, responses to expert reports and to complete expert depositions. Accordingly, the current deadlines in the Scheduling Order are not sufficient to establish a full, complete, and accurate record. Therefore, Peloton respectfully requests to extend the schedule as follows:

Event	Current Deadline	Proposed Deadline¹
Complete Fact Depositions	January 17, 2025	March 31, 2025
Expert Discovery Begins/Joint Status Report	January 22, 2025	April 1, 2025
Expert Reports	Close of all discovery February 7, 2025	April 18, 2025
Responses to Expert Reports	Close of all discovery February 7, 2025	May 2, 2025
Expert Depositions Completed	Close of all discovery February 7, 2025	May 16, 2025
Complainant's initial brief, proposed findings of fact, and appendix	March 7, 2025	June 16, 2025
Respondent's opposition brief,	April 4, 2025	July 16, 2025

¹ Peloton initially submitted a request for status conference and submitted a proposed schedule, which would conclude briefing on September 9, 2025. In accordance with the Presiding Officer's guidance, Peloton has modified the schedule to conclude briefing by July 31, 2025.

responses to proposed findings of fact, proposed findings of fact, and appendix		
Complainant's reply brief and responses to proposed findings of fact	April 18, 2025	July 31, 2025

I. MEET AND CONFER CERTIFICATION

Pursuant to 46 C.F.R. §§ 502.71(a), on December 20, 2024, counsel for Peloton conferred with Flexport counsel. Flexport does not oppose Peloton's request for an extension of the Scheduling Order and will not be filing a response.

II. CONCLUSION

For the foregoing reasons, Peloton respectfully submits that good cause exists for extension of the deadlines in the Scheduling Order. Peloton accordingly requests that its motion to extend the Scheduling Order be granted.

Dated: December 20, 2024

Respectfully Submitted,

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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Executed: December 20, 2024

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